

SENATE No. 3162

Senate, July 1, 2026 -- Text of the Senate Bill to improve outdoor lighting, conserve energy, and increase dark-sky visibility (Senate, No. 3162) (being the text of Senate, No. 3145, printed as amended)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve outdoor lighting, conserve energy, and increase dark-sky visibility.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 85 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 38. (a) As used in this section, the following terms shall have the following
4 meanings unless the context clearly requires otherwise:

5 “Correlated color temperature” or “CCT”, the apparent hue of the light emitted by a
6 fixture, expressed in units of kelvin.

7 “Façade lighting”, illumination of exterior surfaces of buildings for the enhancement of
8 nighttime appearance achieved by shining light onto building surfaces, by internal or external
9 illumination of translucent building surfaces or with fixtures solely for decorative function.

“Fixture”, a complete lighting unit, including a light source, together with the parts designed to distribute the light, position and protect the light source and connect the light source to the power supply.

“Fully shielded fixture”, a fixture that in its mounted position: (i) has an uplight rating of U0 as defined by the standards of the Illuminating Engineering Society; or (ii) allows no direct light from the fixture above a horizontal plane through the fixture’s lowest light-emitting part in its mounted position.

“Glare”, light emitted by a fixture that causes visual discomfort or reduced visibility.

“Illuminance”, the luminous power incident per unit area of a surface.

“Light trespass”, light that falls beyond the property it is intended to illuminate.

“Lumen”, a standard unit of measurement of the quantity of light emitted from a source of light.

“Municipal funds”, bond revenues or money appropriated or allocated by the governing body of a municipality.

“Ornamental lighting”, a lighting fixture that serves both a decorative function and a practical function including, but not limited to, lighting a roadway, parking lot, walkway, plaza, landscaping or other area.

“Parking lot lighting”, a permanent outdoor fixture specifically intended to illuminate an uncovered vehicle parking area.

“Permanent outdoor fixture”, a fixture for use outdoors installed with mounting not intended for relocation.

“Roadway lighting”, a permanent outdoor fixture specifically intended to illuminate a public roadway.

“Sky glow”, scattered light in the atmosphere that is caused by light directed upward or sideways from fixtures that reduces a person’s ability to see the natural night sky.

“State funds”, bond revenues or money appropriated or allocated by the general court.

“Uplight”, direct light emitted above a horizontal plane through the fixture’s lowest light-emitting part in its mounted position.

(b)(1) State or municipal funds shall not be used to install, cause to be installed or operate a new permanent outdoor fixture unless the fixture is:

(i) used for roadway lighting or parking lot lighting, whether mounted to poles, buildings or other structures, and is fully shielded unless it is an ornamental lighting fixture or a fixture used to light tunnels or roadway underpasses;

(ii) an ornamental lighting fixture that complies with a limit on lumens of uplight established in regulations promulgated by the department pursuant to this section;

(iii) a building-mounted fixture and is shielded unless it is a façade lighting fixture;

(iv) a façade lighting fixture that directs the light onto an intended target, is shielded and is selected and installed in a manner that minimizes glare, sky glow and light trespass;

(v) used to light historic structures, flags, monuments, statuary and works of art on public property, is fully shielded and is selected and installed to direct the light onto an intended target in a manner that minimizes glare, sky glow and light trespass;

(vi) used to light athletic playing areas and is selected and installed in a manner that minimizes glare, sky glow and light trespass;

(vii) an outdoor lighting fixture and is used temporarily for emergency, repair, construction or similar activities;

(viii) a navigational or other lighting system necessary for aviation and nautical safety;

(ix) festoon lighting as defined in the NFPA 70 National Electrical Code; or

(x) a replacement of a previously installed permanent outdoor fixture that is destroyed, damaged or inoperative, has experienced electrical failure due to failed components or requires standard maintenance; or

(xi) otherwise authorized by applicable federal laws or regulations.

(c) This section shall not apply where a compelling and bona fide safety or security need exists that cannot be addressed by another reasonable method.

(d) The department of energy resources, in consultation with the Massachusetts Department of Transportation and the executive office of public safety and security, shall promulgate regulations to implement this section; provided, however, that regulations shall contain provisions stating that fixtures used for roadway lighting shall not be more numerous than necessary for adequate vehicular and pedestrian safety as determined by the department of energy resources, in consultation with the Massachusetts Department of Transportation and the

executive office of public safety and security, and in consideration of current lighting needs criteria published by the Federal Highway Administration and the Illuminating Engineering Society. The regulations shall: (i) include the requirements and exemptions in this section; (ii) set a limit for correlated color temperature for fixtures; provided, however, that the limit shall not exceed 3000 kelvin; and provided further, that the department shall include exemptions from the limit where a public safety need is demonstrated, where the fixtures have only a decorative function and are used on certain building façades or landscape features or where the fixtures are used to illuminate athletic playing areas; and (iii) prescribe maintained illuminance levels that are not more than those required for the intended purpose; provided, however, than in setting such levels, the department shall give consideration to lighting industry standards and practices, unless a demonstrated and verified need exists for higher levels to ensure safety or security; and provided, further, that if a municipal or county ordinance or regulation specifies lower illuminance levels for an intended purpose, the municipal or county ordinance or regulation shall govern.

SECTION 2. The Massachusetts Department of Transportation shall review and issue a report on existing roadway lighting and lighting operational costs. The report shall include a review of standards and other criteria for roadway lighting and an analysis of: (i) lighting operational costs; (ii) the impact of roadway lighting on human health, human safety, wildlife safety and the environment; (iii) actions taken by the department to comply with current lighting standards; (iv) procedures and accepted best practices relative to roadway lighting; and (v) recommendations for reducing lighting operational costs through the replacement of existing high-wattage, unshielded fixtures with lower-wattage, fully shielded fixtures and the replacement of unnecessary roadway lighting with the installation of passive safety measures. The department

92 shall issue its report to the department of energy resources and the clerks of senate and the house
93 of representatives not later than January 1, 2027.

94 SECTION 3. Not later than January 1, 2027, the department of public utilities shall
95 develop a rate for unmetered roadway or parking-lot lighting fixtures utilizing less than 25 watts
96 of electricity.

97 SECTION 4. The department of energy resources shall promulgate regulations pursuant
98 to section 38 of chapter 85 of the General Laws not later than January 1, 2027.